CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

Sample confidentiality agreement (fictional - for demo use only).

This document is a fictional non-disclosure agreement included solely to let you test the pilot at ai-doc-pilot.roxanatapia.dev. All parties, amounts, and dates are invented. Do not rely on it for legal purposes.

This Agreement is entered into as of January 1, 2025, between Acme Corp ("Disclosing Party") and Beta Labs Ltd ("Receiving Party").

Section 1 - Definition of Confidential Information

"Confidential Information" means any information disclosed by the Disclosing Party that has commercial value and is labeled "Confidential", including but not limited to: business plans, technical data, customer lists, financial projections, product roadmaps, pricing strategies, and marketing materials. Information is deemed confidential if marked as such or understood by a reasonable person to be so.

Section 2 - Exclusions

The obligations of this Agreement do not apply to information that:

- is or becomes publicly available through no fault of the Receiving Party;
- was rightfully known to the Receiving Party before disclosure;
- is independently developed by the Receiving Party without use of Confidential Information;
- is required to be disclosed by law or court order, provided prompt written notice is given.

Section 3 - Obligations of the Receiving Party

The Receiving Party shall:

- Hold all Confidential Information in strict confidence;
- Restrict access to only those employees, contractors, and third parties who have a legitimate need to know and who have signed identical nondisclosure restrictions;
- Not use the information for any purpose other than the evaluation of a potential business relationship;
- Return or destroy all materials containing Confidential Information upon written request of the Disclosing Party.

Section 4 - Term

This Agreement shall remain in effect for a period of three (3) years from the date of signing. The obligations of confidentiality shall survive termination.

Section 5 - Oral Disclosures

Any oral disclosure of Confidential Information must be confirmed in writing by the Disclosing Party within ten (10) business days of the disclosure. The Receiving Party further covenants that it will instruct all personnel who receive oral disclosures to treat such information with the highest degree of care and to refrain from discussing it in any public or semi-public setting.

Section 6 - Remedies

The Receiving Party acknowledges that any breach of this Agreement would cause irreparable harm to the Disclosing Party's market position and intellectual property rights. Any attempt by the Receiving Party to assert a shorter duration or to argue that certain information has lost its confidential character must be supported by clear and convincing evidence. The Disclosing Party is entitled to seek injunctive relief in addition to any other remedies available at law or equity.

Section 7 - Governing Law

This Agreement shall be governed by the laws of Spain. Any dispute arising hereunder shall be resolved exclusively in the courts of Madrid.

Section 8 - Entire Agreement

This Agreement constitutes the entire understanding between the parties with respect to its subject matter and supersedes all prior negotiations, representations, and agreements.

Signed on behalf of Acme Corp: _____ *Date:* _____

Signed on behalf of Beta Labs Ltd: _____ *Date:* _____